

IN THE COURT OF THE CIVIL JUDGE (SENIOR DIVISION), GURUGRAM
CIVIL SUIT NO. 612 OF 2025

EVIDENCE AFFIDAVIT ON BEHALF OF THE PLAINTIFF

I, Karan Vohra, do hereby solemnly affirm and state as follows:

Do hereby solemnly affirm and state as follows:

1. I am the Plaintiff above named and am well conversant with the facts of the case, having personal knowledge of the same.
2. I state that the Defendant is the recorded owner of the suit property vide registered Sale Deed dated 12.03.2019 (Ex. P-3).
3. I state that I entered into an Agreement to Sell dated 05.10.2024 (Ex. P-1) with the Defendant for the suit property at a total consideration of Rs. 2,85,00,000.
4. I state that I paid earnest money of Rs. 57,00,000 to the Defendant in three instalments between 05.10.2024 and 08.10.2024, as evidenced by the receipts issued to me (Ex. P-2).
5. I state that I applied for and obtained a bank loan sanction of Rs. 2,28,00,000 for the balance consideration on 10.02.2025 (Ex. P-7), well ahead of the due date of 05.04.2025, demonstrating my continuous readiness and willingness to perform my obligations.
6. I state that on or about 15.03.2025 I called upon the Defendant to execute the sale deed, whereupon the Defendant sought further time, which I orally agreed to extend as a matter of accommodation.
7. I state that despite the due date of 05.04.2025 passing, the Defendant failed and neglected to execute the sale deed.
8. I state that I issued a legal notice dated 20.04.2025 (Ex. P-6) calling upon the Defendant to perform the Agreement, to which the Defendant replied on 10.05.2025 asserting an intention to deal with the property with a third party at a higher price.
9. I state that I have been and continue to be ready and willing to perform my obligations under the Agreement, including payment of the balance consideration, at all material times till date.
10. I state that an ad-interim injunction dated 02.06.2025 restraining alienation of the suit property was obtained in my favour and continues to operate.
11. I refer to and rely upon the Site Plan (Ex. P-8) and the Report of the Local Commissioner dated 05.12.2025, which confirm that the suit property remains vacant and available for conveyance.
12. I produce and rely upon Exhibits P-1 to P-8 and the pleadings on record in support of my case, and pray that a decree of specific performance be passed in my favour as prayed in the Plaint.

VERIFICATION

The contents of this affidavit are true to my knowledge.

Verified at Gurugram on this the 10th day of January, 2026.

DEPONENT